

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 2889

By: Townley

6 AS INTRODUCED

7 An Act relating to the state officers; amending 74
8 O.S. 2021, Section 291.1, which relates to
9 legislators' per diem; authorizing per diem in lieu
10 of expenses for certain state officers; prohibiting
11 per diem for certain activities; amending 74 O.S.
12 2021, Section 291.1b, which relates to reimbursable
13 trips for legislators; authorizing mileage
14 reimbursement for certain state officers; prohibiting
15 reimbursement for certain activities; and providing
16 an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 74 O.S. 2021, Section 291.1, is
17 amended to read as follows:

18 Section 291.1. A. Members of the Legislature shall be allowed
19 a per diem in lieu of expenses in an amount authorized by the
20 provisions of the Internal Revenue Code of 1986, as amended, for
21 deductibility of expenses for travel while away from home without
22 additional documentation for each night spent away from home in the
23 performance of their official duties within the state during regular
24

1 and extraordinary legislative sessions, not to exceed the number of
2 legislative days per week.

3 B. State officers listed in Section 250.4 of this title shall
4 be allowed a per diem in lieu of expenses in an amount authorized by
5 the provisions of the Internal Revenue Code of 1986, as amended, for
6 deductibility of expenses for travel while away from home without
7 additional documentation for each night spent away from home in the
8 performance of their official duties, and subject to the
9 requirements of the State Travel Reimbursement Act. Per diem is
10 prohibited if the state officer is provided a home that is owned or
11 leased by the state. State officers are not allowed to receive per
12 diem when performing nonofficial duties including, but not limited
13 to, campaigning or conducting campaign-related activities.

14 SECTION 2. AMENDATORY 74 O.S. 2021, Section 291.1b, is
15 amended to read as follows:

16 Section 291.1b. A. Members of the Legislature shall receive
17 mileage reimbursement pursuant to Section 500.4 of Title 74 of the
18 Oklahoma Statutes for the number of miles necessarily and
19 conveniently traveled by the most usual and feasible route to be
20 present upon convening of the regular or extraordinary sessions of
21 the Legislature by such member in each and every trip in going to
22 and returning from the place of meeting of the Legislature. Each
23 member shall be entitled to mileage reimbursement for one (1) round
24 trip per week in traveling to and from the meeting of the

1 Legislature. A member not claiming per diem reimbursement may elect
2 to receive mileage for not to exceed as many trips as there are
3 legislative days for a week during each week the Legislature is
4 actually in regular or extraordinary session, provided that no
5 single, round-trip mileage reimbursement may exceed the per diem
6 allowance. Members of the Legislature shall receive mileage
7 reimbursement, for the use of privately owned vehicles pursuant to
8 Section 500.4 of Title 74 of the Oklahoma Statutes for the number of
9 miles necessarily and conveniently traveled by the most usual and
10 feasible route to be present in attending meetings of committees of
11 which they are members or to which they are invited by Committee
12 Chairmen when the Legislature is not in session, subject to the
13 approval of the presiding officer of each house for the members of
14 the respective houses.

15 B. State officers listed in Section 250.4 of this title shall
16 receive mileage reimbursement pursuant to Section 500.4 of this
17 title for the number of miles necessarily and conveniently traveled
18 by the most usual and feasible route to be present to perform
19 official duties. Reimbursement for mileage is prohibited if the
20 state officer is provided a state-owned or -leased motor vehicle, or
21 if the state officer has a personal driver employed by or contracted
22 with the state. State officers are not allowed to receive mileage
23 reimbursement for nonofficial activities including, but not limited
24 to, campaigning or conducting campaign related activities.

SECTION 3. This act shall become effective November 1, 2025.

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